

The M.P. Cycle-Rickshaw (Anugyaptiyon Ka Viniyaman) Niyam, 1984

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State of Madhya Pradesh - Act

The M.P. Cycle-Rickshaw (Anugyaptiyon Ka Viniyaman) Niyam, 1984

MADHYA PRADESH

India

The M.P. Cycle-Rickshaw (Anugyaptiyon Ka Viniyaman) Niyam, 1984

Rule THE-M-P-CYCLE-RICKSHAW-ANUGYAPTIYON-KA-VINIYAMAN-NIYAM-1984 of 1984

Published on 5 October 1984

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The M.P. Cycle-Rickshaw (Anugyaptiyon Ka Viniyaman) Niyam, 1984

Published vide Notification No. A-5-8-1984-UW-46, dated 5-10-1984, M.P. Rajpatra Asadharan, dated 5-10-84 at pages 2315-17

Notification No. A-5-8-1984-UW-XLVI, dated 5-10-1984. - In exercise of the powers conferred by sub-section (10) of Section 8 of the Madhya Pradesh Cyde-Rickshaw (Anugyaptiyon Ka Viniyaman) Adhyadesh, 1984 (No. 20 of 1984), the State Government hereby makes the following rules, namely:-

1.

These rules may be called the Madhya Pradesh Cycle-Rickshaw (Anugyaptiyon Ka Viniyaman) Niyam 1984.

2.

In these rules, unless the context otherwise requires,-

(a)

"Adhyadesh" means the Madhya Pradesh cycle-rickshaw (Anugyaptiyon Ka Viniyaman) Adhyadesh, 1984 (No. 20 of 1984).

(b)

"Municipal bye-laws" means any bye-laws, rules or orders made under the Madhya Pradesh Municipal Corporation Act, 1956 (No. 23 of 1956) or the Madhya Pradesh Municipalities Act, 1961 (No. 37 of 1961) or any other laws for the time being in force for regulating the playing or propelling the Cycle-rickshaw.

3.

Before granting a licence to widow or a disabled person the Municipal Authority must obtain a declaration to the effect that the applicant's only source of livelihood would be the income from Cycle-rickshaw.

4.

The licence which shall be issued under the Municipal bye-laws, shall carry a photograph of the owner of the Cycle-rickshaw or the person engaged by him as an attendant, as the case may be, duly attested by the authority issuing the licence.

5.

The licence so issued under the Municipal bye-laws shall legibly mention the word owner" or "attendant" as the case may be in the licence immediately below the photograph, in Capital Letters in red ink.

6.

A copy of photograph of the owner or attendant or the driver to whom a licence for plying a cycle-rickshaw is to be issued shall be kept in the office record of the municipal authority issuing the licence alongwith the application for issue of licence made under the relevant bye-laws.

7.

The licence issued to the person engaged by the owner of the cycle rickshaw as an attendant shall also mention the name and the licence number of the owner plier of the Cycle-rickshaw.

8.

The municipal authority may make a complaint to the competent Court having jurisdiction against the person who commits an offence under Section 6 of the Adhyadesh.

9.

In the event of the forfeiture of a Cycle-rickshaw under Section 7 of the Adhyadesh, such municipal authority in whose jurisdiction offence was Committed shall be competent to take possession for and on behalf of the State Government of the forfeited Cycle-rickshaw and shall settle it with the plier or a propeller subject to such direction as may be issued by the State Government from time to time.

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